Trade and Foreign Investment Policy

The Green Party will work toward a global trade regime that respects ecological limits and local cultures, and which contributes to sustainable development. This should encourage good global citizenship and corporate responsibility, including through enforceable international law to protect human rights and the environment. Economic decision-making should be democratic and transparent.

Vision

Trade and foreign investment prioritise social, economic, cultural, and environmental justice in the pursuit of sustainability.

Values and Principles

Trade and foreign investment agreements and policies must be underpinned by the following values and principles:

- *Honour Te Tiriti o Waitangi*: Māori as Treaty partners and the indigenous people of Aotearoa New Zealand, should have their rights and interests upheld in all trade negotiations between Aotearoa New Zealand and the rest of the world.
- *Ecological Wisdom*: The purpose of trade and foreign investment should be to achieve environmental and social objectives that keep us within our planetary boundaries, and ensure the equitable, sustainable, and responsible use of natural resources.
- *Social Responsibility*: Equity and intergenerational responsibility should be cornerstones of trade and foreign investment, and exploitation rejected.
- *Appropriate Decision-Making*: Trade and investment agreements should be transparently and democratically mandated, negotiated, agreed upon, and reviewed.
- *Non-Violence*: Human rights and fair labour standards must be upheld, and the precautionary principle should be adopted where there is uncertainty or concern about potential harm.
- *Global citizenship*: The specific needs, sovereignty, biodiversity, and cultural differences of emerging economies should be respected.

Strategic Priorities

The Green Party's strategic goals include:

> *"Sustainable transport, renewable energy and regenerative practices in all areas of economic activity [...] will predominate."*

Actions in this policy that will help achieve this include:

- Ensure that all international trade agreements to which Aotearoa New Zealand is a signatory give full effect to Aotearoa New Zealand's Te Tiriti o Waitangi responsibilities, and give effect to the values and principles of this policy (...) (1.3)
- Ensure all new international trade agreements are open to public scrutiny, including by requiring a vote in Parliament before signing. (1.4.1)
- Retaining or imposing tariffs, quotas or bans where useful to prevent unfair competition caused by unjust or unsustainable production practices in the country of origin. (2.4.3)
- Strengthening controls on speculative and other non-productive foreign investment (e.g. land banking) to minimise its negative effects. (3.1.1)

Connected Policies

Managing trade activity is one role of the Government in the Economy, as part of Global Affairs. Trade and foreign investment must support Biodiversity and Environmental Regeneration (including addressing biosecurity), Climate Change responses, and Human Rights. Dependence on trade can be mitigated with self-sufficiency in Food and Energy, and reorientation of key sectors such as Agriculture, Tourism, and high-emitting industries. Any foreign-owned Business operating in Aotearoa New Zealand must be held to the same standard as those that are locally owned.

Policy Positions

1. Sovereignty, International Trade Governance, and Global Citizenship

Issues

The large power imbalances among states engaging in consensus decisions in international trade governance often leads to slow or stalled processes that protect the most powerful and so erode trust. Trade agreements enhance international market access but can undermine national decision-making through shared regulations, opaque dispute mechanisms, and strong investor protections.

Actions

1.1. Advocate for the World Trade Organisation to be replaced with a new international trading organisation aligned with the values and principles of this policy.

1.2. Advocate for strengthened powers for international environmental organisations, labour and human rights organisations, and development organisations to enforce their mandate and restrain unfair and unsustainable trading practices.

1.3. Ensure that all international trade agreements to which Aotearoa New Zealand is a signatory give full effect to Aotearoa New Zealand's Te Tiriti o Waitangi responsibilities, and give effect to the values and principles of this policy, including respecting and upholding:

1.3.1. Positive sovereignty, the autonomy of communities and nations in decisions relating to production, trade, and consumption, local values and cultures, and the need for each country to be resilient to global changes;

1.3.2. All international agreements to which Aotearoa New Zealand is a signatory, including climate, environmental, and human rights agreements;

1.3.3. Environmental standards, ecologically sustainable practices, and the need to reduce our global ecological footprint, including the need for developed countries to reduce consumption;

1.3.4. The need for mechanisms to reduce the importation of products that have a heavy environmental impact through their lifecycle (e.g., border pricing relating to embodied greenhouse gas emissions, disposal, or resource recovery costs) and to prioritise circular economic activity;

1.3.5. Human rights and labour standards;

1.3.6. Indigenous cultural values, including the right of tangata whenua to protect themselves and their taonga from trade- and investment-related exploitation;

1.3.7. Animal rights and welfare;

1.3.8. The importance of food sovereignty and food security, which includes the right of all communities to have secure access to food and water, to prioritise growing and producing their own food, and the wellbeing of small-scale organic and regenerative food producers in emerging economies. This includes Māori food sovereignty;

1.3.9. The rights of peoples and governments over those of financial or corporate investors;

1.3.10. Global inequity, including by providing an appropriate means of exchange, such that transaction costs no longer skew the value of goods and services to the detriment of the countries with emerging economies; and

1.3.11. Democratic principles embraced by all parties.

1.4. Ensure all new international trade agreements are open to public scrutiny, including by:

1.4.1. Requiring a vote in Parliament before signing.

1.5. Advocate for a fair international intellectual property rights regime that includes:

1.5.1. Guaranteed access to essential medicines by, for example, enabling generic production of life-saving drugs; and

1.5.2. Protection of indigenous knowledge and biodiversity from exploitation by, for example, requiring disclosure of its use in patent applications.

2. Trade and Ecological Sustainability

Issues

The current regime of global trade compromises the health of our natural world. Prioritising economic growth and efficiency over environmental safeguards increases resource extraction, displaces pollution, and accelerates biodiversity loss.

Actions

2.1. Advocate for multinational environmental agreements to take precedence over international trade rules and trade agreements.

2.2. Advocate for and collaborate in the development of international environmental impact standards and certification processes for products and services

2.3. Regulate trade with Aotearoa New Zealand in goods that have a significant impact on wellbeing and sustainability, including:

2.3.1. Restricting or prohibiting imported products and services that fail to meet international environmental impact standards;

2.3.2. Requiring environmental impact labelling for internationally traded goods, with regard to both contents and country of origin;

2.3.3. Prohibiting the export of low-quality waste for recycling, and requiring any exports of high-quality materials to be to certified, highly efficient overseas systems;

2.3.4. Prohibiting the export of hazardous wastes except for recycling, reprocessing, or safe storage, and requiring this to be tracked;

2.3.5. Prohibiting the trade of biofuels or biomass for energy;

2.3.6. Implementing the Convention on International Trade in Endangered Species of Wild Fauna and Flora;

2.3.7. Prohibiting trade in unsustainable or illegal wild harvests, such as tropical hardwoods;

2.3.8. Prohibiting trade in viable genetically modified organisms, including seeds, except under strict biosecurity controls

2.3.9. Requiring imported mined materials to be ethically and sustainably sourced;

2.3.10. Ending the import and export of coal and phasing out all other fossil fuel imports;

2.3.11. Prohibiting the import of new and used combustion vehicles, with limited exceptions.

2.3.12. Limiting the trade of live animals for breeding and animal products to countries that have equivalent standards of animal welfare and prohibiting the import and export of live animals for slaughter.

2.3.13. Prohibiting the importation of goods made or produced by forced, compulsory, or child labour, as defined by the International Labour Organisation.

2.3.14. Opposing deregulation of trade in public goods, services and utilities (e.g. health, education, water, electricity, telecommunications)

2.3.15. Rolling back commitments to liberalise trade under the World Trade Organisation' General Agreement on Trade and Services treaty, as needed to achieve the above

2.4. Reorient domestic trade strategies towards sustainable and fair production and distribution and encouraging international trading corporations to be good corporate citizens, pay fair taxes, safeguard the environment, and employ sound labour practices, including by:

2.4.1. Prioritising value-based export measures and targets over those based on quantity or volume.

2.4.2. Discouraging the long-distance transportation of equivalent goods in opposite directions.

2.4.3. Retaining or imposing tariffs, quotas or bans where useful to prevent unfair competition caused by unjust or unsustainable production practices in the country of origin.

2.4.4. Placing a carbon tax on energy-intensive imports from OECD countries that have not adopted binding greenhouse gas emission reduction targets consistent with our global obligation to restrict global warming to within 1.5°C of pre-industrial levels with no overshoot.

2.5. Curb import spending, when urgently needed, by:

2.5.1. Imposing temporary across-the-board tariffs, where they align with the values and principles of this policy

3. Foreign Investment in Aotearoa New Zealand

Issues

Foreign investment, especially when it is directly into businesses, assets, or projects in Aotearoa New Zealand, while offering economic opportunities, also presents economic and democratic risks. A foreign investor or multinational company could transfer profits out of the country, thereby draining foreign exchange, reducing the funds available for local reinvestment, and limiting the domestic benefits of foreign investment. Foreign ownership of assets, such as land and infrastructure, erodes the national benefit from and influence over those assets, risking decisions that ignore domestic priorities and democratic decision-making that reflects the economic influence of foreign vested interests. These risks must be mitigated.

Action

3.1. Ensure that foreign investment in Aotearoa New Zealand is ethical, appropriate, and supports sustainability, by:

3.1.1. Strengthening controls on speculative and other non-productive foreign investment (e.g. land banking) to minimise its negative effects

3.1.2. Prioritising investment into sustainable enterprises;

3.1.3. Strengthening the approval criteria to consistently limit profit repatriation, protect the rights of tangata whenua, support community sovereignty, protect ecosystems, and support a stable climate

3.1.4. Requiring international businesses conducting significant operations here to establish local subsidiaries that are incorporated within Aotearoa New Zealand or otherwise create a local ownership stake in their activities;

3.1.5. Reserving land ownership for Aotearoa New Zealand citizens and permanent residents;

3.1.6. Applying the national interest test to all foreign investment proposals

3.1.7. Reducing the threshold for oversight and review of approved investments where the purchasing entity is 10% or more foreign-owned

3.2. Advocate for an international charter of responsibilities for overseas investors.